



General Assembly

February Session, 2026

Raised Bill No. 249

LCO No. 1431



Referred to Committee on GOVERNMENT OVERSIGHT

Introduced by:
(GOS)

***AN ACT CONCERNING PENSION REVOCATION OR REDUCTION
FOR PUBLIC OFFICIALS AND STATE OR MUNICIPAL EMPLOYEES
CONVICTED OF CRIMES RELATED TO STATE OR MUNICIPAL
OFFICE.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 1-110 of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective July 1, 2026*):

3 As used in sections 1-110 to 1-110d, inclusive:

4 (1) "Public official" means public official, as defined in section 1-79, a
5 judge of any court either elected or appointed, and any elected or
6 appointed municipal official;

7 (2) "State or municipal employee" means state employee, as defined
8 in section 5-154, and includes an employee of any quasi-public agency,
9 as defined in section 1-120, or any person, whether appointed or under
10 contract, who provides services for a [city, town or other political
11 subdivision of the state] municipality for which a pension is provided;
12 [and]

13 (3) "Crime related to state or municipal office" means any of the
14 following criminal offenses committed by a person while serving as a
15 public official or state or municipal employee:

16 (A) The committing, aiding or abetting of an embezzlement of public
17 funds from the state, a municipality or a quasi-public agency;

18 (B) The committing, aiding or abetting of any felonious theft from the
19 state, including any agency of state government, a municipality or a
20 quasi-public agency;

21 (C) Bribery in connection with service as a public official or state or
22 municipal employee; or

23 (D) The committing of any felony by such person who, [wilfully and]
24 with the intent to [defraud] deprive a person of money or property,
25 knowingly realizes or obtains, or knowingly attempts to realize or
26 obtain, a profit, gain or advantage for himself or herself or for some
27 other person, through the use or attempted use of the power, rights,
28 privileges or duties of his or her position as a public official or state or
29 municipal employee;

30 (4) "Municipality" means any city, town or other political subdivision
31 of the state and includes any local or regional board of education that
32 receives funds from the state or a municipality;

33 (5) "Person" means any natural person, corporation, limited liability
34 company, firm, association, organization, partnership, business, trust or
35 other legal entity, including the state, a municipality or a quasi-public
36 agency;

37 (6) "Revoke" or "revocation" means to completely deprive a public
38 official or state or municipal employee of an otherwise vested publicly
39 funded retirement benefit; and

40 (7) "Reduce" or "reduction" means to partially deprive a public official
41 or state or municipal employee of an otherwise vested publicly funded

42 retirement benefit by a fixed percentage for the duration of the receipt
43 of the publicly funded retirement benefit.

44 Sec. 2. Section 1-110a of the general statutes is repealed and the
45 following is substituted in lieu thereof (*Effective July 1, 2026*):

46 (a) Notwithstanding any provision of the general statutes, on or after
47 October 1, 2008, if any public official or state or municipal employee is
48 convicted of or pleads guilty or nolo contendere to any crime related to
49 state or municipal office in state criminal or federal criminal court, the
50 Attorney General shall apply to the Superior Court for an order to
51 revoke or reduce the pension of any kind to which such public official
52 or state or municipal employee is otherwise entitled under the general
53 statutes for service as a public official or state or municipal employee.

54 (b) Except as provided in subsection (e) of this section, in any civil
55 action brought by the Attorney General pursuant to this section on or
56 after July 1, 2026, the Superior Court shall presume that:

57 (1) Revocation of the pension is the most appropriate remedy if the
58 Superior Court finds that the defendant was a public official when the
59 defendant committed a crime related to state or municipal office; and

60 (2) Reduction of the pension is the most appropriate remedy if the
61 Superior Court finds that the defendant was a state or municipal
62 employee when the defendant committed a crime related to state or
63 municipal office.

64 (c) The presumptions in subsection (b) of this section may be rebutted
65 if a party to the civil action proves specific facts that support findings
66 related to the factors set forth in subsection (d) of this section.

67 (d) In determining whether the pension shall be revoked or reduced,
68 the Superior Court shall, if requested by a party in a civil action,
69 consider and make findings on the following factors:

70 (1) The severity of the crime related to state or municipal office for

71 which the public official or state or municipal employee has been
72 convicted or to which the public official or state or municipal employee
73 has pled guilty or nolo contendere;

74 (2) The amount of monetary loss suffered by the state, a municipality
75 or a quasi-public agency or by any other person as a result of the crime
76 related to state or municipal office;

77 (3) The degree of public trust reposed in the public official or state or
78 municipal employee by virtue of the person's position as a public official
79 or state or municipal employee;

80 (4) If the crime related to state or municipal office was part of a
81 fraudulent scheme against the state or a municipality, the role of the
82 public official or state or municipal employee in the fraudulent scheme
83 against the state or a municipality; [and]

84 (5) The extent to which a remedy other than revocation or reduction
85 serves the interest of the state, a municipality or other victim of the crime
86 related to state or municipal office in obtaining restitution that has been
87 ordered by a court of competent jurisdiction to be paid by the public
88 official or the state or municipal employee; and

89 ~~[(5)]~~ (6) Any such other factors as, in the judgment of the Superior
90 Court, justice may require, provided if the court considers the wealth,
91 income or economic circumstances of the public official or state or
92 municipal employee in rendering the court's decision, the court shall
93 consider the wealth, income or economic circumstances of the public
94 official or state or municipal employee at the time such official or
95 employee committed the crime related to state or municipal office, in
96 addition to or in lieu of the wealth, income or economic circumstances
97 of the public official or state or municipal employee at the time the court
98 renders its decision.

99 ~~[(c)]~~ (e) If the court determines, or the Attorney General certifies, that
100 a public official or state or municipal employee, who was convicted of

101 or pled guilty or nolo contendere to a crime related to state or municipal
102 office, voluntarily provided information to the Attorney General, the
103 Auditors of Public Accounts or any state, federal or local law
104 enforcement official concerning the commission of such crime related to
105 state or municipal office by another public official or state or municipal
106 employee who had a greater degree of culpability for such crime than
107 the public official or state or municipal employee providing such
108 information, the court shall not [reduce or] revoke the pension of such
109 public official or state or municipal employee, provided such public
110 official or state or municipal employee voluntarily provided such
111 information prior to learning of a criminal investigation into such crime
112 related to state or municipal office. The court may reduce the pension of
113 such public official or state or municipal employee after considering and
114 making findings based upon the factors set forth in subsection (d) of this
115 section.

116 [(d)] (f) If the Superior Court determines that the pension of a public
117 official or state or municipal employee should be reduced, it may, after
118 taking into consideration the financial needs and resources of any
119 innocent spouse, dependents and designated beneficiaries of the public
120 official or state or municipal employee, order that some or all of the
121 reduced pension be paid to any such innocent spouse, dependent or
122 beneficiary as justice may require.

123 [(e)] (g) If the Superior Court determines that the pension of such
124 public official or state or municipal employee should not be revoked or
125 reduced, it shall order that the retirement or other benefit or payment
126 be made to such public official or state or municipal employee.

127 [(f)] (h) In all criminal proceedings in state court in which the
128 defendant is a public official or a state or municipal employee who is
129 charged with a crime related to state or municipal office, the state
130 prosecutor shall notify the Attorney General of such proceedings and
131 the Attorney General shall pursue remedies under the pension
132 revocation statute, including the possibility that any fine, restitution or

133 other monetary order made by the court be paid from such official's or
134 employee's pension.

135 [(g)] (i) If any provision, clause or phrase of this section or of any
136 order or any action of the Attorney General hereunder is adjudged by
137 any court of competent jurisdiction to be invalid, or if the applicability
138 thereof to any person or circumstance is held invalid, such judgment
139 shall not invalidate the remainder of this section or such order or action,
140 and the applicability thereof to other persons and circumstances shall
141 not be affected thereby.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>July 1, 2026</i>	1-110
Sec. 2	<i>July 1, 2026</i>	1-110a

Section 1	<i>July 1, 2026</i>	1-110
Sec. 2	<i>July 1, 2026</i>	1-110a

Statement of Purpose:

To establish a rebuttable presumption of pension revocation for public officials and pension reduction for state or municipal employees when such official or employee commits a crime related to state or municipal office and to modify what factors the court can consider when determining whether to reduce or revoke the pension of such official or employee.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]